CITY ATTORNEY IMPARTIAL ANALYSIS OF MEASURE DD

Measure DD asks the voters of the City of San Bruno whether they want to repeal the City of San Bruno Safe and Sane Fireworks Ordinance to prohibit the sale, use, and discharge of safe and sane fireworks in the City of San Bruno.

Measure DD was placed on the ballot by the San Bruno City Council. This measure, if approved by the voters, adopts an ordinance to amend Chapter 6.50 of the San Bruno Municipal Code to prohibit the sale, use, and discharge of safe and sane fireworks in the City of San Bruno.

In 2005, the voters of the City of San Bruno approved an initiative measure adopting an ordinance to add Chapter 6.50 to the San Bruno Municipal Code. Chapter 6.50 permits the limited sale, use, and discharge of "safe and sane fireworks," defined by the California Health and Safety Code to mean "any fireworks that have been approved by the United States Consumer Product Safety Commission and that have been carefully examined and tested by the State Fire Marshal and determined by the State Fire Marshal that the fireworks meet and are in compliance with the general and specific standards for design, construction, performance, and labeling for safe and sane fireworks, as set forth in Chapter 6 (commencing with Section 979) of Division 1 of Title 19 of the California Code of Regulations, as it reads on July 1, 2023."

Measure DD will become effective only if approved by a majority of the voters voting on the measure. A "yes" vote on Measure DD is a vote to prohibit the sale, use and discharge of safe and sane fireworks in the City of San Bruno. A "no" vote on Measure DD is a vote to continue the limited sale, use and discharge of safe and sane fireworks in the City of San Bruno, as provided by the current Chapter 6.50 of the San Bruno Municipal Code.

/s/ Trisha Ortiz,

City Attorney for the City of San Bruno